

emotional distress. (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 232-233.) Outrageous conduct is conduct which is so “extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Haberman v. Cengage Learning, Inc.* (2009) 180 Cal.App.4th 365, 389, citations omitted.) Conduct may be considered outrageous where a defendant knows a plaintiff is vulnerable to injuries through mental distress. (*McDaniel v. Gile* (1991) 230 Cal.App.3d 363, 372.)

Here, plaintiff has asserted that the bus driver knew of plaintiff's susceptibility due to her age and vulnerability. (Complaint, ¶¶ 91-92.) Plaintiff has also alleged the bus driver's conduct was with reckless disregard of the probability of causing plaintiff emotional distress. (Id. at ¶¶ 91-92.) Plaintiff has alleged plaintiff experienced severe emotional distress as a result. (Id. at ¶ 94.) To the extent that defendants challenge these assertions, this is a challenge to the merits, which is inappropriate on demurrer. The court overrules the demurrer as to the fifth cause of action.

Strike

A motion to strike may be used to address defects in pleadings otherwise not challengeable by a demurrer. (See Code Civ. Proc., § 435.) Code of Civil Procedure section 436 provides that a court may strike irrelevant, false, or improper matters, or parts of pleadings not filed in conformity with the rules of court. A motion to strike can be used to attack either a portion or the entirety of a pleading. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393.)

Plaintiff concedes that the treble damages in the prayer for relief are subject to striking. Thus, the only issue remaining is the reference to “assault” and “battery” in paragraph 48 of the complaint. Defendants assert that these terms are improper, inflammatory, and irrelevant. However, the underlying claims of assault and battery are relevant here as this is the conduct giving rise to plaintiff's claims. Defendants have not provided legal authority for striking inflammatory language. Courts have acknowledged that inflammatory language can often be found in litigation. (*In re Marriage of DeRoque* (1999) 74 Cal.App.4th 1090, 1094.) The court will not strike the challenged language in paragraph 48.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 7-29-26.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***In re 1433 East Richert Avenue, Fresno, CA 93704***
Superior Court Case No. 25CECG05242

Hearing Date: July 30, 2026 (Dept. 502)

Motion: By Claimant David Hulen to Distribute Surplus Funds

Tentative Ruling:

To grant. Order signed. No appearances necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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